

Program : Diploma in Civil and Environmental Engineering	
Course Code: 6351C	Course Title: Environmental Laws and Policies
Semester: 6	Credits: 4
Course Category: Program Elective	
Periods per week: 4 (L:4 T:0 P:0)	Periods per semester: 60

Course Objectives:

- To develop fundamental understanding of constitutional obligation on Environmental protection.
- To introduce the students about the laws, policies and agencies both at the national and international level relating to environment.
- To equip the students with the skills needed for interpreting laws, policies and judicial decisions.

Course Prerequisites:

Topic	Course code	Course name	Semester
Basics of Environmental Engineering		Environmental Engineering	5

Course Outcomes:

On completion of the course, the student will be able to:

COn	Description	Duration (Hours)	Cognitive level
CO1	Familiarise with the evolution of laws, policies and institutions in the field of environment	14	Understanding
CO2	Acquire the ability to evaluate the role of law and policy in conservation and management of natural resources and prevention of pollution	16	Understanding
CO3	Describe the laws and policies for forest and wild life conservation	14	Understanding
CO4	Familiarise with the concept of International environmental law	14	Understanding
	Series Test	2	

CO-PO Mapping:

Course Outcomes	PO1	PO2	PO3	PO4	PO5	PO6	PO7
CO1					3		
CO2					3		
CO3					3		
CO4					3		

3-Strongly mapped, 2-Moderately mapped, 1-Weakly mapped

Course Outline

Module Outcomes	Description	Duration (Hours)	Cognitive Level
CO1	Familiarise with the evolution of laws, policies and institutions in the field of environment		
M1.01	Identify the factors responsible for environmental pollution	2	Understanding
M1.02	Discuss the Socio-Economic impacts of pollution	2	Understanding
M1.03	Discuss the history of environmental laws in India	3	Understanding
M1.04	Understand the Constitutional obligation on Environmental protection	3	Understanding
M1.05	Explain the general principles of Environmental law	4	Understanding

Contents

Introduction to Ecosystem – Environment and Environmental laws – Factors responsible for environmental pollution- Socio -Economic impacts of Environmental pollution -History of Environmental laws in India-

Basic Concepts in Environmental Law: An introduction to the legal system; Constitution, Acts, Rules, Regulations; Indian Judiciary, Doctrine of precedents, judicial review, Writ petitions, PIL–liberalization of the rule of locus standi, Judicial activism

Introduction to Environmental laws in India; Constitutional provisions, Constitutional obligation on Environmental protection, Stockholm conference; Bhopal gas tragedy; Rio conference.

General Principles in Environmental law: Precautionary principle - Polluter pays

principle- Public trust doctrine. Overview of legislations and basic concepts.			
CO2	Acquire the ability to evaluate the role of law and policy in conservation and management of natural resources and prevention of pollution		
M2.01	Understand the laws relating to prevention of pollution, access and management of water	4	Understanding
M2.02	Describe the functions of Central and State Pollution control boards.	2	Understanding
M2.02	Understand the marine laws of India	3	Understanding
M2.03	Discuss the legal framework on air pollution	3	Understanding
M2.04	Explain the laws related to solid waste management	4	Understanding
Contents Air, Water and Marine Laws : National Water Policy and some state policies, Laws relating to prevention of pollution, access and management of water: Water Act, 1974; Water Cess Act, 1977, EPA, 1986. Central and State Pollution Control Boards – functions. Marine laws of India- Coastal zone regulations. Legal framework on Air pollution: Air Act,1981,EPA, 1986 Basic Legal framework and strategies for waste management -Environment Protection Act as the framework legislation–strength and weaknesses; EIA; National Green tribunal, laws relating to management of solid waste in India. Hazardous Substances and Activities Legal framework: EPA and rules made there under; Public Liability Insurance Act (PLI Act), 1991- Principles of strict and absolute liability			
CO3	Describe the laws and policies for forest and wild life conservation		
M3.01	Discuss the evolution of laws for the conservation of forests	4	Understanding
M3.02	Understand the colonial forest policies and policies after Independence	5	Understanding
M3.03	Discuss the strategies for conservation of wild life	5	Understanding
Contents: Forest, Wildlife and Biodiversity related laws. Evolution of Forest and Wildlife laws; Colonial forest policies; Forest policies after independence- Statutory framework on			

Forests. Indian Forest Act, 1927, Wildlife Protection Act, 1972, Forest conservation Act, 1980, Biological Diversity Act, 2002, Forest Rights Act, 2006

Strategies for conservation–Project Tiger, Elephant, Rhino

CO4	Familiarise with the concept of International environmental law		
M4.01	Discuss the evolution of International Environmental law	4	Understanding
M4.02	Explain the important International laws related to Environment	5	Understanding
M4.03	Describe the law remedies for environmental pollution	5	Understanding

Contents:

International Environmental laws. An introduction to International laws; sources, law of treaties; signature, ratification. Evolution of international environmental law: Customary principles; Common but differentiated responsibility, Polluter pays.

Remedies for Environmental Pollution. Common law remedies/ Remedies under law of Torts– Penal remedies – Indian Penal Code and Code of criminal procedure – Remedies under Constitutional law – Writs – Public interest litigation – Public Liability insurance Act, 1991 – The National Green Tribunal Act, 2010

Text / Reference:

T/R	Book Title/Author
T1	Divan S. and Rosencranz A., “Environmental Law and Policy in India”, Oxford, New Delhi, 3 rd edition, 2022
T2	Leelakrishnan P., “Environmental Law in India”, Lexis Nexis, India, 2022
R3	Kamala S. and Singh U.K., “Towards Legal Literacy: An Introduction to Law in India, Oxford, New Delhi., 2008
R4	Upadhyay S. and Upadhyay V., “Hand Book on Environmental Law- Forest Laws, Wildlife Laws and the Environment; Vols. I, II and III, Lexis Nexis- Butterworths-India, New Delhi, 2002
R5	Birnie P. (2009) et al., “International Law and the Environment”, 3rd ed., Oxford.
R6	Sands P. (2002) Principles of International Environmental Law, 2nd ed, Cambridge.

Online resources:

Sl.No.	Website Link
1	https://nptel.ac.in/courses/129106002
2	https://archive.nptel.ac.in/courses/129/106/129106002/